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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA'S MEMORANDUM
OPPOSING MOTION TO CLASSIFY
DEFENDANT'S MOTION FILED
JANUARY 9, 2026**

Case No. 251403576

Hon. Tony F. Graf, Jr.

The Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, the Utah Headliners Chapter of the Society of Professional Journalists, The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network (all collectively,

News Media) hereby oppose Defendant’s Motion to Classify Defendant’s Motion filed January 9, 2026. Because this Court granted the Motion without affording the News Media the right to oppose it and be heard, the News Media further request that this Court vacate its Order on Motion to Classify entered January 12, 2026.

ARGUMENT

Defendant filed his Motion on Friday, January 9, 2026. The Motion itself provides almost no explanation for why the presumptively public filing should be classified as non-public, nor does it (or the order granting it) engage in any of the substantive analysis required by Rule 4-202.04(6). That alone renders the Order improper. *See also Supernova Media, Inc. v. Pia Anderson Dorius Reynard & Moss, LLC*, 2013 UT 7, ¶¶ 55-60, 297 P.3d 599 (“Because of the public’s interest in open court records, a court must make the findings required by rule 4-202.04[6] even when all parties stipulate to sealing.... The failure of a district court to make necessary findings is an abuse of discretion unless the facts in the record are clear, uncontroverted, and capable of supporting only a finding in favor of the judgment.” (cleaned up)).¹

Moreover, this Court entered its Order granting the Motion the following Monday, January 12, 2026, without affording the News Media the opportunity to oppose the Motion or be heard. In its Standing Order for Rule 4-202.04 Notice of Motions for Classification, entered

¹ *See also Le v. Exeter Fin. Corp.*, 990 F.3d 410, 419 (5th Cir. 2021) (“Most litigants have no incentive to protect the public’s right of access. That’s why judges, not litigants, must undertake a case-by-case, document-by-document, line-by-line balancing of the public’s common law right of access against the interests favoring nondisclosure. Sealings must be explained at a level of detail that will allow for this Court’s review. And a court abuses its discretion if it makes no mention of the presumption in favor of the public’s access to judicial records and fails to articulate any reasons that would support sealing.... When it comes to protecting the public right of access, the judge is the public interest’s principal champion. And when the parties are mutually interested in secrecy, the judge is its *only* champion.” (cleaned up)).

December 29, 2025, this Court stated that the News Media would have seven (7) days to oppose closure requests after receiving notice. Because that did not happen here, this Court's Order should also be vacated on that ground.

On a substantive level, the News Media understands that the basis for Defendant's closure request is that the motion at issue concerns evidence Defendant plans to argue would be inadmissible at trial, apparently on the assumption that pretrial suppression hearings and the motions relating to them are necessarily non-public. The law is the opposite. And because Defendant has indicated he intends to keep making this argument for future exclusion and suppression motions, the News Media submits this opposition to correct that misimpression.

In its seminal decision in *Richmond Newspapers v. Virginia*, 448 U.S. 555 (1980), the United States Supreme Court recognized a First Amendment right of access that "inheres in the very nature of a criminal trial under our system of justice." *Id.* at 573. Subsequent decisions following this recognition of the structural right have left no doubt that the public's First Amendment right of access applies with full force to suppression hearings and related court records. *See, e.g., People v. DeBeer*, 774 N.Y.S.2d 314, 315 (N.Y. Cty. Ct. 2004) ("A court may not close a [suppression] hearing on a possibility that there might be tainted, nonpublic evidence that might impair the selection of an impartial jury—which could very likely be said of every suppression hearing in every highly publicized case."); *United States v. Criden*, 675 F.2d 550 (3d Cir. 1982) (vacating order closing suppression hearing in the prosecution of four "Abscam" defendants); *United States v. Brooklier*, 685 F.2d 1162 (9th Cir. 1982) (noting "increasing importance of pretrial procedures in the modern era" and rejecting effort to close suppression hearing to determine admissibility of evidence based on alleged misconduct by FBI agents); *Miami Herald Publ'g Co. v. Lewis*, 426 So.2d 1 (Fla. 1982) ("The trial court should begin its

consideration with the assumption that a pretrial hearing be conducted in open court unless those seeking closure carry their burden to demonstrate a strict and inescapable necessity for closure.”); *Ex parte Hearst-Argyle Television, Inc.*, 631 S.E.2d 86 (S.C. 2006) (reversing a trial court order closing a pre-trial suppression hearing in a capital murder case because closure would not prevent additional publicity and did not satisfy constitutional test); *People v. LaGrone*, 838 N.E.2d 142 (Ill. App. Ct. 2005) (reversing a trial court order denying public access to hearing on motions in limine).

This application of the right of access to suppression hearings derives directly from the rationale of *Richmond Newspapers*. Every single motion to exclude evidence involves or discusses evidence that may not be introduced at trial. If that fact were alone enough to warrant closure, there would be no meaningful right of access to such hearings. The law in this area, however, is exactly the opposite. In its unanimous opinion in *Waller v. Georgia*, the United States Supreme Court explained why:

As several of the individual opinions in *Gannett* recognized, suppression hearings often are as important as the trial itself. In *Gannett*, as in many cases, the suppression hearing was the *only* trial, because the defendants thereafter pleaded guilty pursuant to a plea bargain.... The need for an open proceeding may be particularly strong with respect to suppression hearings.

467 U.S. 39, 46-47 (1984) (citations omitted; emphasis in original). *See also* C. Dienes, L. Levine & R. Lind, *Newsgathering and the Law* § 3-1(a)(2) at p. 81-82 (Michie 1997) (“A decision that evidence is admissible will often be followed by a guilty pleas. A decision that evidence is constitutionally inadmissible often precludes further prosecution.”); *State v. Grecco*, 455 A.2d 485, 487 (N.J. Super. Ct. App. Div. 1982) (“[P]ublic access may be even more important in pretrial evidentiary hearings than at trial, since pretrial hearings are often crucial stages of trials[.]”).

These same interests in access were echoed by the Second Circuit in *In Re Herald Tribune Co.*, 734 F.2d 93, 98 (2d Cir. 1984):

It makes little sense to recognize a right of public access to criminal courts and then limit that right to the trial phase of a criminal proceeding, something that occurs in only a small fraction of criminal cases. There is a significant public benefit to be gained from public observation of a criminal proceeding, including pretrial suppression hearings that may have a decisive effect upon the outcome of a prosecution.

As the News Media have already briefed at length, the constitutional standard for closure is extremely rigorous by design. It cannot be overcome with speculative assertions or generalized arguments that some piece of evidence might be excluded at trial. The public's right of access is not limited to the trial. It extends to all phases of the proceedings, including motions to exclude evidence. Because it appears that Defendant's basis for requesting closure here rests only on the erroneous assumption that the public has no such right, his Motion should be denied.

RESPECTFULLY SUBMITTED this 15th day of January 2026.

PARR BROWN GEE & LOVELESS

/s/ David C. Reymann

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